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Case Number: 24TRCV01259 Hearing Date: June 26, 2026 Dept: P

Motion for Sanctions

Moving Party: Cross-Defendant City of Redondo Beach

Responding Party: Cross-Complainants Sixt Rent a Car, LLC and John Emerson

RULING

The court considered the moving papers and opposition. The City's Motion for Sanctions is DENIED.

PROCEDURAL BACKGROUND

On April 12, 2024, Plaintiff Lisa Moule ("Plaintiff") filed a complaint against Defendants Doe One and DOES 1 through 20, inclusive, alleging two causes of action for: (1) Motor Vehicle; and (2) General Negligence. On September 11, 2024, Plaintiff filed an amendment identifying DOE 1 as Defendant Sixt Rent a Car, LLC ("Sixt"). On November 13, 2024, Plaintiff filed an amendment identifying DOE 2 as Defendant John M. Emerson ("Emerson").

On February 27, 2025, Cross-Complainants Sixt Rent a Car, LLC and John Emerson (collectively, "Cross-Complainants") filed a cross-complaint against Cross-Defendants City of Redondo Beach (the "City") and ROES 1 through 50, inclusive (collectively, "Cross-Defendants"), alleging two causes of action for Comparative Indemnity.

On May 12, 2025, Cross-Complainants filed a first amended cross-complaint against Cross-Defendants, alleging the same two causes of action for Comparative Indemnity.

On June 27, 2025, Cross-Complainants filed a second amended cross-complaint ("SACC") against Cross-Defendants, alleging three causes of action for: (1) Declaratory Relief; (2) Equitable Indemnity; and (3) Equitable Contribution/Apportionment of Fault.

On April 3, 2026, the City filed for summary judgment.

On May 22, 2026, the City filed the instant motion for sanctions. On June 10, 2026, Cross-Complainants filed an opposition. On June 17, 2026, the City filed a reply.

FACTUAL BACKGROUND

Plaintiff's complaint arises out of an incident on March 17, 2024 at the bike path in front of the Shade Hotel in Redondo Beach, California. (Complaint, p. 5.) Plaintiff alleges that she was riding her bicycle southbound in the bike lane while Defendant Doe was driving northbound on Harbor Drive. (Complaint, p. 5.) Plaintiff alleges that Defendant Doe made an unsafe left turn onto the Shade Hotel driveway "directly in front of Plaintiff's right of way, which caused Plaintiff to lose control of her bicycle." (Complaint, p. 5.) Plaintiff alleges that she "was knocked off her bicycle and she sustained serious physical injuries." (Complaint, p. 5.)

Cross-Complainants allege that the City "created a dangerous condition of public property" pursuant to Government Code Section 835 because "a bike lane divider cone broke away from its connection to the ground," and the City had actual or constructive notice of the broken lane divider (the "Subject Delineator"). (SACC, ¶ 22.) Cross-Complainants allege that the broken Subject Delineator "created a dangerous condition of public property," and that Plaintiff was injured due to "rolling over a toppled, broken bike lane cone divider." (SACC, ¶¶ 22, 24.)

LEGAL STANDARD

Code of Civil Procedure Section 128.7(b) provides: "By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances," that "(1) [i]t is not being presented primarily for an improper purpose, such as to harass or cause unnecessary delay or needless increase in the cost of litigation" and "(2)[t]he claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law." (Code Civ. Proc. Section 128.7(b)(1-2).) If the court determines that subdivision (b) has been violated, the court has the authority to "impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation." (Code Civ. Proc. Section 128.7(c).)

Under Section 128.7, a court may impose sanctions if it concludes a pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 189–190.) A claim is factually frivolous if it is "not well grounded in fact" and is legally frivolous if it is "not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law." (*Ibid.*) In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. (*Ibid.*) A claim is objectively unreasonable if "any reasonable attorney would agree that [it] is totally and completely without merit." (*Ibid.*) However, "section 128.7 sanctions should be 'made with restraint' [Citation], and are not mandatory even if a claim is frivolous." (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 448.)

Code of Civil Procedure Section 128.7(c)(1) requires that a motion for sanctions under Section 128.7 be "made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b). Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim defense, contention, allegation, or denial is not withdrawn or appropriately corrected." This 21-day time period is known as a "safe harbor" period and its purpose is to permit an offending party to avoid sanctions by withdrawing the improper pleading during the safe harbor period. (*Li v. Majestic Industry Hills LLC* (2009) 177 Cal. App. 4th 585, 591.) This permits a party to withdraw a questionable pleading without penalty, thus saving the court and the parties time and money litigating the pleading as well as the sanctions request. (*Ibid.*)

DISCUSSION

Moving Party's Argument

The City moves for an order imposing monetary sanctions against Cross-Complainants pursuant to CCP Section 128.7 and requiring Cross-Complainants to pay the City reasonable attorney's fees and costs. The City argues that discovery has established that the City had no notice of the allegedly fallen Subject Delineator prior to Plaintiff's accident and that the condition of the Subject Delineator was not a proximate cause of Plaintiff's injuries. The City argues that Cross-Complainants have continued to prosecute frivolous cross-claims against the City, warranting sanctions.

Opposing Party's Argument

In opposition, Cross-Complainants argue that sanctions are not warranted because the SACC was reasonably filed. Cross-Complainants argue that they had sufficient factual and legal grounds to file the SACC based on their reasonable belief that the City was the proximate cause or substantial factor in causing Plaintiff's fall. Cross-Complainants argue that the City has filed the instant motion to punish Cross-Complainants for exercising their right to protect their interests against Plaintiff's allegations.

Reply Argument

The City argues that the SACC is meritless because Cross-Complainants have failed to present any notice or causation evidence and have abandoned the theory of liability that they swore to in discovery, such that sanctions are warranted. The City argues that Cross-Complainants have continued to allege facts without evidentiary support after discovery. The City argues that its request for attorney's fees is reasonable pursuant to Code of Civil Procedure Section 128.7(d).

Evidentiary Objections

Cross-Complainants' evidentiary objections Nos. 1-6, 8-12 to the Declaration of Damian Capozzola are **OVERRULED**. Cross-Complainants' evidentiary objection No. 7 to the Capozzola Declaration is **SUSTAINED** as speculation.

Merits of the Motion

As Cross-Complainants observe, the City has filed the instant motion for sanctions concurrently with the City's motion for summary judgment. The City has raised the same arguments as a basis for each, being that the evidence establishes that the City lacked actual or constructive notice of the broken Subject Delineator, and the Subject Delineator was not a proximate cause of Plaintiff's injuries.

The proof of service filed with the moving papers indicate that the motion was served on April 28, 2026, and the motion was filed on May 22, 2026, such that the 21-day safe harbor period established by Code of Civil Procedure Section 128.7(c)(1) had concluded, and Cross-Complainants had not withdrawn their cross-complaint against the City.

"A complete lack of evidence to substantiate key allegations of the cross-complaint...is sufficient ground for imposition of sanctions for the filing of a frivolous pleading." (580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 22.) While 580 Folsom Associates involved the imposition of sanctions pursuant to Code of Civil Procedure Section 128.5, the case aligns with the instant matter because both cases involve a motion for sanctions being brought concurrently with a motion for summary judgment of a cross-complaint. (Id. at 7-8, 19.) However, in 580 Folsom Associates, the cross-defendants argued that several of the allegations in the cross-complaint were false, and the court agreed. (Id. at 8, 21.)

Here, the court refers to its analysis of the City's motion for summary judgment. The court has found that Cross-Complainants have presented sufficient evidence to establish a triable issue of material fact as to whether the City had constructive notice of the damaged Subject Delineator. However, the court found that Cross-Complainants failed to meet their burden of establishing the existence of triable issues of material fact regarding whether the allegedly broken or fallen Subject Delineator was a proximate cause of Plaintiff's injuries. The court found that Cross-Complainants failed to present evidence showing that the fallen or broken nature of the Subject Delineator contributed to Plaintiff's fall, instead showing at most that Plaintiff's bicycle struck the base of the Subject Delineator, an outcome which would not have been affected whether the Subject Delineator had been fallen or upright.

The court notes that sanctions under Section 128.7 are not mandatory even if the pleading is unsupported by evidence. (Peake, supra, 227 Cal.App.4th at 448.) In light of Cross-Complainants' evidence regarding the City's constructive notice and the severe nature of sanctions, the court finds that the allegations of the cross-complaint are not entirely without merit and declines to impose sanctions.

Accordingly, the City's Motion for Sanctions is DENIED.

CONCLUSION

Based on the foregoing, the City's Motion for Sanctions is DENIED.

Motion for Summary Judgment

Moving Party: Cross-Defendant City of Redondo Beach

Responding Party: Cross-Complainants Sixt Rent a Car, LLC and John Emerson

RULING

The court considered the moving papers, opposition, and reply. The City's Motion for Summary Judgment is GRANTED.

PROCEDURAL BACKGROUND

On April 12, 2024, Plaintiff Lisa Moule ("Plaintiff") filed a complaint against Defendants Doe One and DOES 1 through 20, inclusive, alleging two causes of action for: (1) Motor Vehicle; and (2) General Negligence. On September 11, 2024, Plaintiff filed an amendment identifying DOE 1 as Defendant Sixt Rent a Car, LLC ("Sixt"). On November 13, 2024, Plaintiff filed an amendment identifying DOE 2 as Defendant John M. Emerson ("Emerson").

On February 27, 2025, Cross-Complainants Sixt Rent a Car, LLC and John Emerson (collectively, "Cross-Complainants") filed a cross-complaint against Cross-Defendants City of Redondo Beach (the "City") and ROES 1 through 50, inclusive (collectively, "Cross-Defendants"), alleging two causes of action for Comparative Indemnity.

On May 12, 2025, Cross-Complainants filed a first amended cross-complaint against Cross-Defendants, alleging the same two causes of action for Comparative Indemnity.

On June 27, 2025, Cross-Complainants filed a second amended cross-complaint ("SACC") against Cross-Defendants, alleging three causes of action for: (1) Declaratory Relief; (2) Equitable Indemnity; and (3) Equitable Contribution/Appportionment of Fault.

On April 3, 2026, the City filed the instant motion. On June 5, 2026, Cross-Complainants filed an opposition. On June 12, 2026, the City filed a reply.

FACTUAL BACKGROUND

Plaintiff's complaint alleges that on March 17, 2024, Plaintiff was riding her bicycle along the bicycle path on Harbor Drive, approaching the driveway to the Shade Hotel, when Emerson turned the rental vehicle he was driving into the Shade Hotel driveway directly in front of Plaintiff's right-of-way. (UMF Nos. 3-5.) Emerson was driving a vehicle he had rented from Sixt. (UMF No. 4.) Plaintiff's complaint alleges that Emerson's turn caused Plaintiff to lose control of her bicycle, resulting in her falling and sustaining serious injuries. (UMF No. 6.)

Cross-Complainants allege that a flexible plastic bicycle lane delineator (the "Subject Delineator") was in a fallen position at the time of Plaintiff's fall. (UMF No. 9.) Plaintiff had already lost her balance and was in the process of falling before she made contact with the Subject Delineator. (UMF No. 15.) The front axle of Plaintiff's tricycle, alleged by Plaintiff to be a bicycle, rolled directly over the base of the Subject Delineator. (UMF Nos. 3, 17.)

City personnel patrol the Harbor Drive bicycle path four times each day, including one time in each direction during the morning shift, and one time in each direction during the evening shift. (UMF No. 10.) When a City maintenance worker observes a lane delineator in a fallen or downed position, pursuant to the established City practice, the worker will immediately raise the delineator and stand it back upright. (UMF No. 11.) If the delineator will not remain upright, the City maintenance workers will mark it as a hazard using a cone and request a more substantial repair to be arranged. (UMF No. 11.) On the date of Plaintiff's fall, no City maintenance worker observed the Subject Delineator in a fallen position at any time prior to Plaintiff's accident. (UMF No. 12.)

LEGAL STANDARD

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. Section 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at Section 437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option, he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence...." (*Aguilar, supra*, 25 Cal.4th at 865-66.)

[A] defendant may simply show the plaintiff cannot establish an essential element of the cause of action "by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Id.* at 854.) Thus, rather than affirmatively disproving or negating an element (e.g., causation), a defendant moving for summary judgment has the option of presenting evidence reflecting the plaintiff does not possess evidence to prove that element. "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing" to support an essential element of his case. (*Aguilar, supra*, 25 Cal.4th at 855.) Under the latter approach, a defendant's initial evidentiary showing may "consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110.) In other words, a

defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred. (Scheiding v. Dinwiddie Construction Co. (1999) 69 Cal.App.4th 64, 83.)

(Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1103.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Id. at Section 437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

DISCUSSION

Moving Party's Argument

The City argues that it is entitled to summary judgment on all three of Cross-Complainants' causes of action because Cross-Complainants cannot establish the City's underlying liability. The City argues that Cross-Complainants cannot establish that the City actual or constructive notice pursuant to Government Code Section 835 regarding the allegedly fallen Subject Delineator prior to the incident or that the Subject Delineator was a proximate cause of Plaintiff's injuries. The City argues that its evidence establishes that on the date of the incident, City maintenance workers patrolled the area looking for potential hazards and none knew or had reason to know that the Subject Delineator had fallen on the date of Plaintiff's fall. The City also argues that Plaintiff's testimony and video evidence of the incident indicates that she was already falling before she reached the Subject Delineator and Plaintiff tricycle would have contacted the base of the Subject Delineator regardless of whether it was fallen.

Opposing Party's Argument

In opposition, Cross-Complainants argue that the evidence shows that the City created a dangerous condition by installing the Subject Delineator and failing to remedy it. Cross-Complainants also argue that the deposition testimony of City employees shows that the City had actual notice that lane delineators were frequently being knocked over by the public. Cross-Complainants argue that the City disregards the fact that the SACC alleges that the City created a dangerous condition of public property and further argues that the evidence establishes that the Subject Delineator installed by the City caused or contributed to Plaintiff's fall.

Reply Argument

In reply, the City argues that Cross-Complainants attempt to articulate a new theory of liability in their opposition, being the City's installation of the lane delineators on the bike path. The City argues that Cross-Complainants focused exclusively on the broken Subject Delineator in their sworn discovery responses, and Cross-Complainants' expert declarations contradict their discovery responses. The City further argues that Cross-Complainants have offered no evidence of notice or causation. The City argues that Cross-Complainants have not presented evidence showing how long the Subject Delineator had been toppled over, and the evidence indicates that Plaintiff would have struck the Subject Delineator the same way regardless of whether it was upright or fallen.

Evidentiary Objections

Cross-Complainants' evidentiary objections Nos. 1-3 to the Declaration of Tyler Williams are OVERRULED.

Cross-Complainants' evidentiary objections Nos. 1-3 to the Declaration of Damian D. Capozzola are OVERRULED. Cross-Complainants' evidentiary objections Nos. 6-7 to the Capozzola Declaration are SUSTAINED on the grounds of speculation, as to the last sentences of paragraphs 13 and 14 only.

Cross-Complainants' evidentiary objections Nos. 1-3 to the Declaration of Julio Jimenez are OVERRULED.

Cross-Complainants' evidentiary objections Nos. 1-3 to the Declaration of Guillermo Angel are OVERRULED.

The City's evidentiary objections Nos. 1-2 to the Declaration of Timothy Reust are SUSTAINED as irrelevant. (Oakland Raiders v. National Football League (2005) 131 Cal.App.4th 621, 648.) The City's evidentiary objection No. 3 to the Reust Declaration is OVERRULED.

The City's evidentiary objections Nos. 1-5 to the Declaration of Kenneth Solomon, Ph.D., are SUSTAINED as irrelevant. (Oakland Raiders, supra, 131 Cal.App.4th at 648.)

The City's evidentiary objection No. 1 to the Declaration of Russell Rubin is OVERRULED.

Merits of the Motion

Cross-Complaint

Cross-Complainants allege the following three causes of action against the City: (1) Declaratory Relief; (2) Equitable Indemnity; and (3) Equitable Contribution/Apportionment of Fault.

"To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

"To state a claim for equitable indemnity, a defendant must allege the same harm for which he may be held liable is properly attributable—at least in part—to the cross-defendant." (Platt v. Coldwell Banker Residential Real Estate Services (1990) 217 Cal.App.3d 1439, 1445, fn.7.)

A claim for contribution requires allegations of (1) "a money judgment," (2) "rendered jointly against two or more defendants in a tort action," (3) "in accordance with the principles of equity," (4) "after one tortfeasor has, by payment, discharged the joint judgment or has paid more than his pro rata share thereof," (5) without intentional injury by the tortfeasor. (Code Civ. Proc. Section 875(a)-(d).)

As the City correctly notes, each of Cross-Complainants' causes of action are dependent upon a showing of the City's liability, and here, Cross-Complainants allege that the City is liable for Plaintiff's injuries based on Government Code Section 835. Therefore, the court will analyze each party's burden of proof through the application of Government Code Section 835.

Government Code Section 835

Dangerous Condition

To hold a public entity liable for injury caused by a dangerous condition, a plaintiff must prove (1) that the property was a dangerous condition at the time of the injury, (2) that the injury was proximately caused by the dangerous condition, (3) that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and (4) that either a negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition or the public entity had actual or constructive notice of the dangerous condition and sufficient time prior to the injury to have taken measures to protect against the dangerous condition. (Gov. Code Section 835.)

A condition is not a dangerous condition if, viewing the evidence most favorably to the plaintiff, the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when used with due care in a manner in which it was reasonably foreseeable that it would be used. (Gov. Code Section 830.2.)

A claim alleging a dangerous condition of public property must "specify in what manner the condition constituted a dangerous condition" and "a plaintiff's allegations, and ultimately the evidence, must establish a physical deficiency in the property itself." (Mixon v. Pacific Gas & Electric Co. (2012) 207 Cal.App.4th 124, 131.) "To establish a qualifying condition, the plaintiff must point to at least one 'physical characteristic' of the property." (Cole v. Town of Los Gatos (2012) 205 Cal.App.4th 749, 759.) A dangerous condition exists where the property is "physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property, or possesses a physical characteristic in its design, location, features or relationship to its surroundings that endanger users. (Mixon, supra, 207 Cal.App.4th at 131.)

The existence of a dangerous condition is ordinarily a question of fact but can be decided as a matter of law if reasonable minds can come to only one conclusion. (Id. at 148.)

Here, the SACC alleges that the City "created a dangerous condition of public property." (SACC, ¶ 19.) Cross-Complainants specifically allege that "a dangerous condition existed because a bike lane divider cone broke away from its connection to the ground," and the "broken divider cone on the bike path created a dangerous condition of public property." (SACC, ¶ 22.)

Allowing a wholly different factual theory of liability may allow Cross-Complainant to "find" new facts to support its claim after the motion for summary judgment was filed. This creates a concern about the procedural viability of Code of Civil Procedure section 437c, which requires the parties to be "acting on a known or set stage" rather than allowing plaintiff to change their theory of liability any time their contentions are successfully attacked. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242 at fn 7.) Defendants simply can't challenge a contention when they have no notice that plaintiff is relying on it. (See Turner v. State of California (1991) 232 Cal.App.3d 883, 891 (fn 3).) "[T]he pleadings set the boundaries of the issues to be resolved at summary judgment." (Oakland Raiders v. National Football League (2005) 131 Cal.App.4th 621, 648.) "A 'plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. [Citation.]'" (Ibid., quoting Government Employees Ins. Co. v. Superior Court (2000) 79 Cal.App.4th 95, 98-99, fn. 4.)

Therefore, the court finds that the SACC alleges a dangerous condition created by the fallen or "broken" Subject Delineator, not by the installation of the lane delineators in general as argued by Cross-Complainants in their opposition to the instant motion.

Notice

To establish actual notice, there must be evidence of the public entity's actual knowledge of the existence of the condition, and that the entity knew or should have known of its dangerous character. (Gov. Code Section 835.2.)

A government entity has constructive notice of a dangerous condition only if the plaintiff establishes that the condition "existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character." (Gov. Code Section 835.2(b) [emphasis added].) On the issue of due care, admissible evidence includes but is not limited to evidence of whether the condition and its dangerous character

would have been discovered by an inspection system that was reasonably adequate or whether the public entity maintained and operated an inspection system with due care and did not discover the condition. (Gov. Code Section 835.2(b)(1)-(2).)

“Whether the dangerous condition was obvious and whether it existed for a sufficient period of time are threshold elements to establish a claim of constructive notice.” (Heskel v. City of San Diego (2014) 227 Cal.App.4th 313, 317 [base of hollow metal post cemented into city sidewalk was not obvious to impart constructive notice].) “Where the plaintiff fails to present direct or circumstantial evidence as to either element, his claim is deficient as a matter of law.” (Ibid.) “The primary and indispensable element of constructive notice is a showing that the obvious condition existed a sufficient period of time before the accident.” (State v. Superior Court for San Mateo County (1968) 263 Cal.App.2d 396, 400 [italics in original].)

Here, the City argues that it had no actual or constructive notice of the fallen Subject Delineator prior to Plaintiff’s fall. In support, the City offers the declarations of three City maintenance employees, Guillermo Angel (“Angel”), Julio Jimenez (“Jimenez”), and Tyler Williams (“Williams”). Each City maintenance employee declares that their job duties have included “patrolling the bikepath along Harbor Drive, including the area immediately in front of the Shade Hotel.” (Angel Decl., ¶ 2; Jimenez Decl., ¶ 2; Williams Decl., ¶ 2.) Each City employee further declares that “City Maintenance Department workers have been assigned to patrol that area [the bikepath area immediately in front of the Shade Hotel] at least four times a day, every day: twice (up and back along Harbor Drive) during the morning shift, and twice (up and back along Harbor Drive) during the afternoon shift. At least one City Maintenance worker is so assigned every shift, so the bikepath in front of the Shade Hotel is patrolled at least four times daily.” (Angel Decl., ¶ 2; Jimenez Decl., ¶ 2; Williams Decl., ¶ 2.)

Each City maintenance worker also declares that when a lane delineator is knocked down, maintenance workers are expected to “simply stand the fallen delineator back up.” (Angel Decl., ¶ 3; Jimenez Decl., ¶ 3; Williams Decl., ¶ 3.) However, when a lane delineator would not remain standing, City maintenance workers were “expected...to mark the hazard with a cone and promptly notify [a] superior for reporting and repair.” (Angel Decl., ¶ 3; Jimenez Decl., ¶ 3; Williams Decl., ¶ 3.) All three City maintenance employees declare that while they were on duty on the date of Plaintiff’s fall, each had “no relevant specific recollections regarding any fallen delineators that day.” (Angel Decl., ¶ 4; Jimenez Decl., ¶ 4; Williams Decl., ¶ 4.) Neither Angel, Jimenez, nor Williams had “heard anything about a delineator being down that day.” (Angel Decl., ¶ 4; Jimenez Decl., ¶ 4; Williams Decl., ¶ 4.)

The court finds that the City has met its burden of establishing that no triable issue of material fact exists as to whether the City had actual or constructive notice of the fallen Subject Delineator prior to Plaintiff’s fall. Next, the burden shifts to Cross-Complainants.

Cross-Complainants argue that the evidence indicates that the City had constructive notice of the Subject Delineator before Plaintiff’s fall. In support, Cross-Complainants offer excerpts of the deposition transcripts of Angel, Williams, Jimenez, and City employee Wallace Iosia (“Iosia”).

Angel testified that he had previously observed fallen lane delineators while patrolling the bike path, approximately once every other month. (Cross-Comp. Appendix Exh. G, 13:17-14:3.) Angel further testified that he was not certain if he was assigned to work at the area in front of the Shade Hotel on the date of Plaintiff’s fall. (Cross-Comp. Appendix Exh. G, 14:21-25.) Next, Williams testified that he regularly works between 6:00 AM and 2:30 PM and confirmed that Plaintiff’s fall occurred around 5:00 PM after Williams had completed his shift. (Cross-Comp. Appendix Exh. H, 12:2-8; 16:1-5.) Williams testified that he would inspect the area in front of the Shade Hotel twice per day, typically in the early or mid-morning. (Cross-Comp. Appendix H, 16:23-17:2; 17:25-18:6.) Williams testified that it was “quite common” to observe fallen lane delineators. (Cross-Comp. Appendix H, 20:5-8.) Jimenez similarly testified that it is “very common” to see fallen lane delineators on the bike path. (Cross-Comp. Appendix Exh. I, 13:16-14:7.)

Next, Cross-Complainants offer excerpts from the deposition transcript of Iosia, a City employee working in the sign shop department, which is responsible for replacing or repairing lane delineators. (Cross-Comp. Appendix Exh. J, 10:1; 11:6-11.) Iosia testified that after Plaintiff’s incident, he replaced the “tall part” of the Subject Delineator because “it was pretty obvious it wasn’t able to come back up so the only reasonable thing to do is replace it.” (Cross-Comp. Appendix Exh. J, 14:5-11; 16:8-13.) Iosia concluded that the Subject Delineator had “reached its maximum capacity to be able to pop back up as it’s normally designed to do,” based on a photograph showing the Subject Delineator “laying down completely.” (Cross-Comp.

Appendix Exh. J, 16:14-21.) Iosia further testified that he could tell from the photograph of the fallen Subject Delineator that it needed to be replaced because the yellow area at the top of the delineator “should be completely rectangle,” but “you can’t even recognize the rectangle here...[which] tells [Iosia] that [the Subject Delineator] has taken hundreds of hits...and obviously the long period of time leads up to” the Subject Delineator falling down. (Cross-Comp. Appendix Exh. J, 17:7-18.) Iosia testified that his job duties include “check[ing] and mak[ing] sure all the signs are in place and obviously with the bike path it’s right along that end of the driveway, it’s easy to recognize if there is any damage or different delineators that needs immediate attention or repair.” (Cross-Comp. Appendix Exh. J, 18:23-19:6.) Iosia testified that he works in the area near the Shade Hotel approximately twice per week. (Cross-Comp. Appendix Exh. J, 19:10-12.)

The court finds that Cross-Complainants’ evidence is sufficient to establish a triable issue of material fact as to whether the City had constructive notice of the defective Subject Delineator prior to Plaintiff’s incident. Iosia’s testimony indicates that the Subject Delineator had been in poor condition for a significant period of time before the incident and displayed obvious defects at the top of the delineator. While Cross-Complainants have not provided direct evidence showing when the Subject Delineator fell over, the court finds that Cross-Complainants’ evidence shows that the Subject Delineator had been in damaged condition after being repeatedly hit over a substantial period of time leading up to Plaintiff’s fall.

Therefore, the court concludes that Cross-Complainants have met their burden of establishing the existence of triable issues of material fact regarding the City’s constructive notice of the broken Subject Delineator.

Causation

To hold a public entity liable under Government Code Section 835, a plaintiff must prove that the plaintiff’s injury was proximately caused by the dangerous condition. (Gov. Code Section 835.) Government Code Section 835 “provides for public liability only for dangerous conditions of the property itself,” such that a plaintiff must establish a causal connection between the alleged dangerous condition and the plaintiff’s injuries. (Stone v. State of California (1980) 106 Cal.App.3d 924, 928.)

Here, the City argues that Cross-Complainants cannot establish that the fallen Subject Delineator was a proximate cause of Plaintiff’s injuries. In support, the City offers an excerpt from Plaintiff’s deposition transcript, in which she testified that as the vehicle driven by Emerson “was moving through the intersection, as [Plaintiff] was trying to get around it, [her] bike started to lose control, and then [Plaintiff] tried to get it to the left” after “the bike started to tip a little bit to the right, so [Plaintiff] went left around the car. And that’s when [Plaintiff’s] front right tire of [her] bike started to come off the ground, and that’s where [Plaintiff] completely lost control.” (Def. Appendix Exh. L, 33:23-34:5.) Plaintiff subsequently testified that “the bike was already out of control” when Plaintiff attempted to “get around the car without crashing into the bicyclist or the curb that was between...North Harbor Drive and the bicyclist.” (Def. Appendix Exh. L, 36:4-11.)

Again, Plaintiff testified that “when the car came in front of [her], [Plaintiff] tried to get around it. The bike went out of control, and [Plaintiff] tried to stabilize it, and that’s when [Plaintiff] ended up going directly into the curb.” (Def. Appendix Exh. L, 37:6-10.) When asked directly about the “pylon that was on the ground,” Plaintiff testified that she did not recall making contact with the pylon and directly stated that the “pylon had nothing to do with” Plaintiff’s fall. (Def. Appendix Exh. L, 39:17-21.)

The City also offers photographs taken from a video of Plaintiff’s fall. The court has reviewed the photographs and finds that they are blurry and fail to provide a clear picture of precisely what caused Plaintiff’s fall. (Def. Appendix Exh. O.)

However, the court finds that Plaintiff’s testimony in which she clearly stated that she fell after losing her balance by trying to avoid Emerson’s vehicle and striking the curb, rather than the Subject Delineator, is sufficient to enable the City to meet its initial burden of establishing that no triable issue of material fact exists as to whether a dangerous condition of public property proximately caused Plaintiff’s injuries. Next, the burden shifts to Cross-Complainants to establish the existence of a triable issue of material fact.

Here, Cross-Complainants argue that the evidence shows that the Subject Delineator caused or contributed to Plaintiff's fall. In support, Cross-Complainants offer excerpts from the deposition transcript of Emerson, in addition to two expert declarations from Timothy Reust ("Reust") and Kenneth Alvin Solomon, Ph.D. ("Solomon").

Emerson testified that he believed Plaintiff fell because based on the video of the incident, it appeared to Emerson that Plaintiff "hit something with the cart in front of her bike because her cart popped up." (Cross-Comp. Appendix Exh. F, 27:4-11.)

Next, Cross-Complainants offer the declaration of Reust, an accident reconstruction expert. (Reust Decl., ¶ 1.) Reust bases his opinions on his review of the video of Plaintiff's accident, photos taken of the Subject Delineator, the pleadings, written discovery, deposition transcripts, and his own inspection of Plaintiff's electric cargo tricycle in addition to Reust's inspection of the location where Plaintiff's fall occurred. (Reust Decl., ¶ 7.) Reust inspected Plaintiff's tricycle on March 10, 2026, and inspected the incident location on January 24, 2026. (Reust Decl., ¶ 7.) Reust opines, to a reasonable degree of certainty, that "the Subject Accident would not have occurred if the Subject Delineator was absent from the Subject Bike Path, and that the existence of the Subject Delineator and the fact that it was leaning over and extending into the Subject Bike Path made it a dangerous condition of public property." (Reust Decl., ¶ 12.)

Reust specifically opines that based on his review of the videotape of the incident, "the Subject Delineator was leaning over and extending into the Subject Bike Lane before and after the Subject Accident," and "the subject videotape further shows that Plaintiff's tricycle was not out of control until it interacted with the Subject Delineator," and "shows Plaintiff not falling until her tricycle interacted with the Subject Delineator," and finally "shows that the right front wheel of Plaintiff's tricycle moves upward abruptly when it runs over the Subject Delineator followed by the immediate loss of control causing her tricycle and Plaintiff to lean and fall to the left side of [the] tricycle and onto the Subject Bike Path." (Reust Decl., ¶ 9.)

Cross-Complainants also offer the declaration of Solomon, a safety engineering expert. (Solomon Decl., ¶ 1.) Solomon bases his opinions on the pleadings, written discovery, the videotape of the incident, photos of the incident, and deposition transcripts, along with his own investigation. (Solomon Decl., ¶¶ 7, 9.) Solomon opines, to a reasonable degree of certainty, that "the Subject Delineator constituted a dangerous condition of public property at the time of the Subject Accident." (Solomon Decl., ¶ 9.) Solomon similarly opines that the videotape of the incident "shows that one of the front wheels of Plaintiff's modified electric tricycle [hit] the base of the Subject Delineator which caused Plaintiff to lose balance and turn over. The Subject Accident would not have occurred if the Subject Delineator was absent from the Subject Bike Path." (Solomon Decl., ¶ 11.)

Solomon also opines to a reasonable degree of certainty that prior to Plaintiff's fall, the vehicle driven by Emerson was "traveling at a reasonable rate of speed...and had a reasonable separation of approximately 25 feet between the subject rental vehicle and Plaintiff's modified electric tricycle to make a safe turn into the driveway. Accordingly, the reasonable actions of Cross-Complainant Emerson were not a substantial factor in causing the Subject Accident." (Solomon Decl., ¶ 12.) Therefore, Solomon opines that the conduct of the City "and/or Plaintiff [was] the proximate cause or substantial factor in causing the Subject Accident." (Solomon Decl., ¶ 13.)

The court has previously concluded that the declarations of Reust and Solomon are irrelevant because they exceed the scope of the pleadings to the extent that each expert opines that Plaintiff's fall was caused by the mere existence of the Subject Delineator, rather than its damaged or fallen condition. (Oakland Raiders, supra, 131 Cal.App.4th at 648.) The court finds that at most, Plaintiff's evidence indicates that Plaintiff's wheel struck the base of the Subject Delineator, which is unrelated to the allegedly defective or fallen portion of the Subject Delineator which was located at the top, rather than the base, according to Cross-Complainants' own evidence. (Cross-Comp. Appendix Exh. J, 14:5-11; 16:8-13; 17:7-18.)

As a result, the court finds that Cross-Complainants' evidence is insufficient to establish the existence of triable issues of material fact regarding whether the broken Subject Delineator was a proximate cause of Plaintiff's injuries.

Therefore, the court has found that Cross-Complainants have not met their burden of creating triable issues of material fact as to whether there is a basis for the City's liability pursuant to Government Code Section 835. As all three of

Cross-Complainants' causes of action are dependent upon the City's liability, the court finds that Cross-Complainants have not provided sufficient evidence to defeat the instant motion.

Accordingly, the City's Motion for Summary Judgment is GRANTED.

CONCLUSION

Based on the foregoing, the City's Motion for Summary Judgment is GRANTED.

Prevailing party on motion is ordered to give notice of ruling.